

exempting the purchaser from liability. A testator had directed his trustees to sell and invest the proceeds upon the trusts thereafter mentioned, and then gave his wife an annuity of 50*l.* a year, for her life, to be paid out of the proceeds, and subject thereto, gave the fund to his son; but in case of his death under twenty-one, to the person entitled to his Taunton lands. Mr. Booth wrote, "I am of opinion, that all that will be incumbent on the purchaser to see done will be to see that the trustees invest the purchase-money, in their names, in some of the public stocks or funds, or on Government securities, and in such case the purchaser will not be answerable for any misapplication, after such investment of the money, of any monies which may arise by the dividends or interest, or by any disposition of such funds, stocks, or securities, *it not being possible that the testator should expect from any purchaser any further degree of care or circumspection than during the time that the transaction *for the purchase was carrying on, and there- [*456] fore the testator must be supposed to place his sole confidence in the trustees, and this is the settled practice in these cases, and I have often advised so much, and no more, to be done.*" And in this opinion Mr. Wilbraham also concurred (a).

7. **Trust to pay debts.** — To the principle under consideration is referable the well-known rule, that a purchaser is not bound to see to the application of his money where the trust is for payment of *debts generally*; for to ascertain who are the creditors, and what is the amount of their respective claims, is matter of trust involving long and intricate accounts, and requiring the production of vouchers, which the purchaser would have no right to require (b). And mere

(a) 2 Cas. and Opp. 114.

(b) *Forbes v. Peacock*, 11 Sim. 152; and see S. C. 12 Sim. 528; 1 Ph. 717; *Stroughill v. Anstey*, 1 De G. M. & G. 635; *Corser v. Cartwright*, 7 L. R. H. L. 731; *Dowling v. Hudson*, 17 Beav. 248; *Culpepper v. Aston*, 2 Ch. Ca. 223; *Watkins v. Cheek*, 2 S. & S. 205, *per* Sir J. Leach; *Anon. Mos. 96*; *Hardwicke v. Mynd*, 1 Anst.

109; *Johnson v. Kennett*, 3 M. & K. 630, *per* Lord Lyndhurst; *Rogers v. Skillicorne*, Amb. 189, *per* Lord Hardwicke; *Walker v. Smalwood*, Id. 677, *per* Lord Camden; *Barker v. Duke of Devonshire*, 3 Mer. 310; *Abbott v. Gibbs*, 1 Eq. Ca. Ab. 358; *Binks v. Rokeby*, 2 Mad. 238, *per* Sir T. Plumer; *Dunch v. Kent*, 1 Vern. 260, admitted; *Elliot v. Merryman*, Barn.